

IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT COURT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR HOMEOWNERS'
ASSOCIATION INC
Plaintiff(s)

vs.

CASE NO.: 2022CA004348AX
DIVISION: D

COLONIAL MANOR MHC HOLDINGS
LLC
Defendant(s)

_____ /

CASE MANAGEMENT ORDER

The court previously entered its order requiring the parties to meet and confer within 30 days after the last party is served with initial process to discuss, and jointly complete the Case Management Report, and to submit the completed Case Management Report to the Court within five (5) days after the initial meet and confer but no later than the date set forth in the order.

The court finds that the parties have failed to timely submit the completed Case Management Report as ordered, and the Court therefore enters this order setting the following deadlines which shall hereafter control the progress of this case. The Court will strictly enforce the deadlines herein. Failure to abide by these deadlines may result in sanctions including but not limited to the exclusion of witnesses and evidence, the striking of pleadings and/or dismissal. No deadline set forth herein may be modified except by further order of the court.

To the extent that the deadlines in this case management order conflict with any deadlines set forth in any order setting trial in this action, this order shall control.

The following deadlines are hereby imposed:

Expected Trial Date:

It is expected that a Jury trial shall begin within 18 months of the date of filing of the lawsuit and that a Nonjury trial shall begin within 12 months of the date of filing of the lawsuit. Unless otherwise indicated by the parties prior to pretrial conference it is anticipated that the trial will be completed within five (5) days including jury selection (if applicable.)

Within 15 days of the case being at issue, Plaintiff shall send the Court a proposed agreed order setting the case for trial. If the parties are unable to agree to a proposed trial date, Plaintiff shall submit a proposed order scheduling a Case Management Conference (using the Court's standard case management dates) for the next date that is not less than fifteen days from the date the proposed order is submitted.

Motions directed to the pleadings. Shall be timely filed in accordance with the deadlines set forth in the Florida Rules of Civil Procedure, but no later than 30 days after the filing of the pleading to which the motion is directed.

Motions to Add Party or Amend Pleadings. Shall be filed no later than 180 days prior to Pretrial Conference.

Electronically Stored Information. Unless otherwise indicated by any party the court will not expect significant court time will be necessary to resolve issues relating to the discovery of electronically stored information. If any party believes that significant court time will be necessary, that party shall raise the issue at the first scheduled Case Management Conference, or if no conference is scheduled, that party shall schedule a Case Management Conference (using the Court's standard case management dates) for the next date that is not less than fifteen days from the date the need for significant court time is identified.

Exchange of Initial Witness and Exhibit Lists. The parties shall exchange initial witness and exhibit lists no later than 180 days prior to the Pretrial Conference. Expert witnesses shall be so designated. Witness lists for both lay and expert witnesses shall include addresses and/or other contact information for each witness, together with the expected subject matter of their testimony.

Expert Witnesses. Any reports prepared by an expert witness actually expected to testify at trial shall be furnished no later than 120 days prior to pretrial conference.

Fabre Defendants. Any motion seeking to add a nonparty to the verdict form shall be filed no later than 90 days prior to the Pretrial Conference.

Witness and Exhibit Lists for Use at Trial. No later than 90 days prior to the Pre-Trial Conference, the parties shall exchange lists of witnesses and exhibits expected to be actually used or called at trial. Expert witnesses shall be so designated. Witness lists for both lay and expert witnesses shall include addresses and/or other contact information for each witness together with the expected subject matter of their testimony. Each party shall have the right to submit a supplemental list upon receipt and review of the opposing party's list no later than 75 days prior to the Pre-Trial Conference. Lists must be specific. General descriptions of witnesses or categories of documents, or "catch-all" designations will not be accepted or enforced. No party shall be permitted to call a witness or introduce any exhibit not so disclosed without a written stipulation or leave of court. No party will be permitted to call a witness or introduce any exhibit not so disclosed without leave of Court.

Discovery. All discovery shall be completed no later than 30 days prior to Pretrial Conference. No discovery may be served or conducted after this deadline without leave of court or agreement of the parties.

Dispositive Motions, Summary- Judgment, Daubert Challenges. Shall be filed no later than 90 days prior to the Pretrial Conference. Obtaining hearing time can be challenging and any party filing such a motion shall attempt to secure hearing time at the earliest opportunity. If a moving party fails to promptly and diligently seek hearing time on any such motion the court may conclude that this order has been violated and may decline to hear the motion as the result of such failure.

Mediation. Mediation shall be scheduled no later than 30 days before the Pretrial Conference and shall be completed prior to the Pretrial Conference.

DEADLINE APPLICABLE ALL MOTIONS. All motions must be filed before hearing time is reserved. All motions shall be noticed for hearing within 15 calendar days of filing. If a motion is not timely noticed for hearing it may be deemed abandoned by the court and denied without hearing. It is not necessary that the motion be heard within 15 days; it must simply be noticed for hearing.

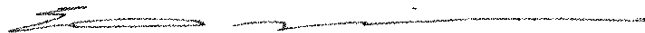
Magistrate Referral

The Court refers certain matters to a general magistrate as permitted by Florida Rule of Civil Procedure 1.490(a). The Court will refer all motions directed to the pleadings and all discovery motions. The parties may agree to additional matters to be referred.

Attorney Appearance

Each attorney that appears on behalf of a party must file a separate notice of appearance and designation of email address. (Multiple attorneys within the same firm must each file a separate notice of appearance and designation of email address.) This is an on-going requirement for any new attorney that appears during the litigation. Each attorney that appears is fully responsible for the case.

DONE AND ORDERED in Bradenton, Manatee County, Florida, on this _____ day of November 2023.



eSigned by EDWARD NICHOLAS, Circuit Judge 11/16/2023 15:56:36 f2vDGy4g

EDWARD NICHOLAS, CIRCUIT JUDGE

The Court caused the foregoing document to be served via the Clerk of Court's case management system, which served the following individuals via email:

ATTORNEY EMAIL ADDRESSES:

Victoria W. Powell, Esq., victoria@wholisticlegalsolutions.com; victoria@wholisticbiz.com

J. Allen Bobo, Esq., jabobo@lutzbobo.com; ahodgins@lutzbobo.com